

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
EDUARDO ANDRADE and BARBARA CORTEZ,

SUMMONS

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
DEWAN CAMPBELL, TAX ID No. 950147, NYPD POLICE
OFFICER ALBERTO VELOZ, Shield No. 27710, NYPD
POLICE DETECTIVE JENNIFER LEW, Tax ID No. 935181,
and NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,

Plaintiffs designate Queens
County as the place of trial.

Defendants.

----- X
To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 14, 2023

Yours, etc.

Omar T. Russo

Omar T. Russo, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiffs

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER DEWAN CAMPBELL, TAX ID No. 950147, NYPD 114th Precinct Force Investigation Division; 34-16 Astoria Boulevard, Queens, NY 11103

NYPD POLICE OFFICER ALBERTO VELOZ, Shield No. 27710, NYPD 114th Precinct; 34-16 Astoria Boulevard, Queens, NY 11103

NYPD POLICE DETECTIVE JENNIFER LEW, Tax ID No. 935181, NYPD 114th Precinct Force Investigation Division; 34-16 Astoria Boulevard, Queens, NY 11103

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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EDUARDO ANDRADE and BARBARA CORTEZ,

VERIFIED COMPLAINT

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
DEWAN CAMPBELL, TAX ID No. 950147, NYPD POLICE
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NUMBERS ONE THROUGH TEN,

Plaintiffs designate Queens
County as the place of trial.

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Plaintiffs EDUARDO ANDRADE and BARBARA CORTEZ, by their attorneys,
Shulman-Hill, PLLC, as and for their Verified Complaint herein, allege upon information and
belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 11, 2022, at approximately 9:50 a.m., Plaintiffs EDUARDO ANDRADE and BARBARA CORTEZ, while lawfully inside 31-63 33rd Street, County of Queens, State of New York, were subjected to the use of excessive force by the defendant officers. Plaintiffs suffered serious physical injuries, as well as mental and emotional injury as a result. Further, Plaintiffs were severely injured and one plaintiff required professional medical treatment and emergency surgery. Plaintiff were deprived of their constitutional rights when the individual defendants unlawfully assaulted, battered, subjected to excessive force, and denied the plaintiffs the right to timely medical treatment against Plaintiffs in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Eduardo Andrade (hereafter "Mr. Andrade") is a resident of the state of New York.

3. Plaintiff Barbara Cortez (hereafter “Ms. Cortez”) is a resident of the state of New York.

4. NYPD Police Officer Dewan Campbell, Tax ID No. 950147, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. NYPD Police Officer Dewan Campbell, Tax ID No. 950147, is being sued in his individual and official capacities.

6. NYPD Police Officer Dewan Campbell, Tax ID No. 950147, was at all times relevant herein assigned to the NYPD 114th Precinct.

7. NYPD Police Officer Alberto Veloz, Shield No. 27710, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

8. NYPD Police Officer Alberto Veloz, Shield No. 27710, is being sued in his individual and official capacities.

9. NYPD Police Officer Alberto Veloz, Shield No. 27710, was at all times relevant herein assigned to the NYPD 114th Precinct.

10. NYPD Police Detective Jennifer Lew, Tax ID No. 935181, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

11. NYPD Police Detective Jennifer Lew, Tax ID No. 935181, is being sued in her individual and official capacities.

12. NYPD Police Detective Jennifer Lew, Tax ID No. 935181, was at all times relevant herein assigned to the NYPD 114th Precinct Force Investigation Division.

13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On April 11, 2022, at approximately 9:50 a.m., Plaintiffs were lawfully inside their home, located at 31-63 33rd Street, Apartment 13, County of Queens, State of New York, when they were subjected to excessive force and denial of various federal constitutional rights by the defendant NYPD police officers.

17. Plaintiffs were inside Ms. Cortez's home when defendant police officers from the NYPD 114th Precinct knocked on their door.

18. Defendant officers grabbed Ms. Cortez by the wrist and shirt, attempting to drag her out of the apartment, causing physical injury.

19. Defendant officers then ordered Mr. Andrade to put his hands up, which he did.

20. At this point one defendant officer, upon information and belief an NYPD Police Officer Campbell, shot Mr. Andrade with his service firearm approximately seven (7) times in his testicles and in his thigh.

21. Mr. Andrade was then tased in the testicles by the defendant officers.

22. It was at this time that defendant officers began to arrest the plaintiff as he lay on the ground, restraining him with tight metal handcuffs and subjected him to unlawful pat-down search.

23. Plaintiffs did not resist arrest.

24. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did defendant NYPD police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

25. At no point did defendant NYPD police officers recover any drugs, weapons, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs' possession, custody, or control.

26. Nevertheless, Plaintiff Eduardo Andrade was unlawfully and brutally attacked and shot by defendant officers.

27. Defendant officers then proceeded to search Ms. Cortez's home, causing severe property damage.

28. Upon information and belief, Ms. Cortez's daughter then called an ambulance, and when it arrived defendant officers made Mr. Andrade walk to the ambulance.

29. Thereafter, Mr. Andrade was transported to Elmhurst Hospital where he underwent emergency surgery for his very serious injuries.

30. Ms. Cortez also received medical care for her injuries at Mt. Sinai Hospital.

31. After approximately four (4) days in police custody, Mr. Andrade was released on his own recognizance.

32. Mr. Andrade would thereafter receive further medical treatments and surgeries at Mt. Sinai Hospital and Bellevue Hospital.

33. Mr. Andrade lost his job as an electrician as a result of this incident.

34. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably using excessive force, and denying Plaintiffs the right to due process and adequate medical treatment.

35. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiffs to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights: Excessive Force

36. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

37. The use of excessive force by defendants by, amongst other things, grabbing and dragging them, shooting them, and tasing them, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

Failure to Intervene

38. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

39. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

40. Defendants failed to intervene to prevent the unlawful conduct described herein.

41. As a result of the foregoing, Plaintiffs suffered significant mental and emotional injuries, their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

42. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the United States Constitution.

43. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

44. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

46. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

47. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

48. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

49. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

FOURTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

49. Plaintiff Eduardo Andrade repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Despite being aware that Plaintiff was suffering through severe pain and bleeding from his injuries and required additional treatment from medical professionals, defendants delayed Plaintiff's medical treatment and refused to administer and/or properly procure immediate and adequate medical attention.

51. This delay in medical treatment for Plaintiff's injuries resulted in pain and injury that could have been prevented had Plaintiff received treatment in a timely manner.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Department of Corrections, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

50. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

51. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

52. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

53. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately four (4) days in total.

54. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights

55. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

56. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

57. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

58. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

59. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

60. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

SEVENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

61. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

63. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

64. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

65. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

66. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately four (4) days in total.

67. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights

68. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

69. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

70. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

71. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

72. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

73. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

75. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

NINTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

76. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

85. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

86. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

87. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of respondeat superior.

JURY DEMAND

88. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
December 14, 2023

Yours, etc.

Omar T. Russo

Omar T. Russo, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiffs

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER DEWAN CAMPBELL, TAX ID No. 950147, NYPD 114th Precinct Force Investigation Division; 34-16 Astoria Boulevard, Queens, NY 11103

NYPD POLICE OFFICER ALBERTO VELOZ, Shield No. 27710, NYPD 114th Precinct; 34-16 Astoria Boulevard, Queens, NY 11103

NYPD POLICE DETECTIVE JENNIFER LEW, Tax ID No. 935181, NYPD 114th Precinct Force Investigation Division; 34-16 Astoria Boulevard, Queens, NY 11103

ATTORNEY'S VERIFICATION

OMAR T. RUSSO, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
December 14, 2023

Omar T. Russo
OMAR T. RUSSO, ESQ.